

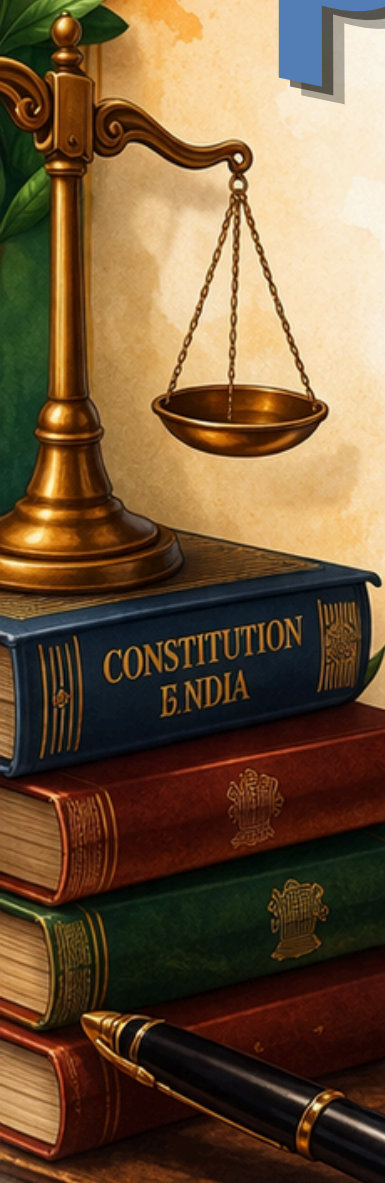


GK PYQ SERIES [PART-6]

POLITY



LECTURE-2



DEMOCRACY

JUSTICE

RIGHTS

GOVERNANCE

Q1. When the Rajya Sabha passes a resolution under Article 249, the power of Parliament to legislate remains valid for:

Delhi Police 2025

- a) 1 year b) 5 years c) 6 months d) Lok Sabha term

Article 249

- Power of Rajya Sabha:** If the Rajya Sabha passes a resolution (by 2/3rd majority of members present and voting) that it is necessary in national interest, then
- Parliament gets power:** Parliament can make laws on subjects in the State List.
- Validity:** This resolution remains valid for 1 year.
- Extension:** It can be extended repeatedly, each time for 1 year.
- Effect on State laws:** State laws on that subject remain, but Parliament law will prevail in case of conflict.
- After expiry:** The law made by Parliament continues for 6 months after the resolution ends.

Q2. Consider the following statements:

SSC CGL- 14 Sep 2025 09:00 AM (Shift-1)

- Supreme Court can transfer cases from one High Court to another.
- Article 139A was introduced by the 42nd Amendment.

Which of the above is/are correct?

- a) Only 1 b) Only 2 c) Both 1 and 2 d) Neither 1 nor 2

Supreme Court Articles (Part V, Chapter IV, Article - 124 -147)

- The Supreme Court was established on January 26/28, 1950.

TRICK - SC ne SAARC countries ko SEAT OFFER Kari

SC	-	Art 124	-	SC
S	-	Art 125	-	Salaries
A	-	Art 126	-	Acting Chief Justice
A	-	Art 127	-	Ad Hoc judges
R	-	Art 128	-	Retired judges
C	-	Art 129	-	Court of record
Seat	-	Art 130	-	Delhi as a seat
Offer	-	Art 131	-	Original jurisdiction

Eligibility of a Supreme Court Judge

- A person must have been a Judge of a High Court for at least 5 years, OR
- An Advocate of a High Court for at least 10 years, OR
- A distinguished jurist in the opinion of the President

Appointed by the Chief Justice if there is no quorum

Age Criteria

- There is no minimum age limit prescribed
- The maximum retirement age is 65 years (for High Courts, it is 62 years).

- Article 136:** Special Leave to Appeal.
- Article 137:** Power of Judicial Review; the SC can review its own judgments.
- Article 138:** Enlargement of Jurisdiction; the SC's jurisdiction can be expanded.
- Article 139:** Power to issue certain writs (extra writs apart from Article 32).
- Article 139A:** The Supreme Court has the power to transfer cases from one High Court to another or withdraw cases to itself.
- Article 140:** Ancillary (extra/supplementary) powers given to the SC.

- **Article 141:** Law declared by the Supreme Court is binding on all courts in India (Integrated Judiciary).
- **Article 142:** Power to pass any order to ensure "Complete Justice" in any matter.
- **Article 143:** Advisory Jurisdiction. The President can seek advice from the SC on two matters: Pre-constitutional matters (SC must advise) and Matters of public importance (Advice not mandatory). The advice given is not binding on the President.
- **Article 144:** All civil and judicial authorities must act in aid of (assist) the Supreme Court.

Q3. The strength of the sanctioned judges of the Supreme Court (SC) of India, including the Chief Justice, is:

SSC SELECTION POST 01/08/2025 (Shift-1)

- a) 25 b) 34 c) 30 d) 40

Composition and Qualifications of the Supreme Court:

- **Current Strength:** The current sanctioned strength is 34 (1 Chief Justice + 33 other judges).
- **Original Strength:** When established in 1950, the strength was 8 (1 Chief Justice + 7 other judges).

Key Facts about the Supreme Court of India

- The first Chief Justice of India was **H. J. Kania**
- The first female judge of the Supreme Court was Justice **Fathima Beevi**
- Justice **B. V. Nagarathna** is expected to become the first female CJI in the future
- The current Chief Justice of India is Justice **Surya Kant**

Q4. Which of the following is not a discretionary power of the President?

Delhi Police 2025

- a) Appointment of PM
b) Returning an ordinary bill
c) Dismissal of a government
d) Sending message to Parliament

- **Article 74 (President) & Article 163 (Governor):** State that there shall be a Council of Ministers to aid and advise the President/Governor.
- The 42nd Amendment made this advice mandatory/binding for the President, but the 44th Amendment (1978) allowed the President to return the advice once for reconsideration. The reconsidered advice is binding.
- **Difference:** The 42nd Amendment did not apply to the Governor. Thus, the advice of the CoM is not strictly binding on the Governor under Article 163.
- **Constitutional vs. Situational Discretion:** The President has no explicit Constitutional Discretion (it is not written anywhere in the constitution that the President acts on their own discretion). The Governor does have Constitutional Discretion (e.g., reserving a bill for the President, recommending President's Rule). The President only exercises Situational Discretion when specific circumstances arise.

Instances of President's Situational Discretion:

- **Appointment of PM:** Used when there is a "Hung Assembly" (no political party gets a clear majority).
- **Dismissal of a Government:** If a No-Confidence Motion is passed (Article 75(3)) against the Council of Ministers, they must resign. If they don't, the President uses discretion to dismiss the government.
- **Returning an Ordinary Bill (Veto Power):** Under Article 111, when an ordinary bill (Article 107) comes to the President, they can use Veto powers instead of giving assent (positive power).
 - **Absolute Veto:** Refusing assent entirely.
 - **Suspensive Veto:** Returning the bill for reconsideration.
 - **Pocket Veto:** Giving no response at all (e.g., Giani Zail Singh in 1987 on the Postal Amendment Bill). The Indian President's "pocket is deep" because there is no specified time limit to return a bill.

Addressing the Parliament:

- **Article 86:** Sending messages to the Parliament.
- **Article 87 (Motion of Thanks):** The President special addresses the house in two scenarios: (1) The first session after a general election, and (2) The first session of every new year.

Deadlock and Joint Sitzings (Article 108):

- If there is a deadlock on an ordinary bill (one house rejects it, doesn't respond for 6 months, or disagrees with amendments), the President can summon a Joint Sitting.
- This concept is borrowed from the Australian Constitution.
- Joint sittings are not applicable for Money Bills or Constitutional Amendment Bills.
- **It has occurred 3 times in history:** Prevention of Terrorism Act (POTA), Dowry Prohibition Bill, and Banking Services Commission Bill.

Q5. Consider the following statements:

SSC CGL- 14 Sep 2025 09:00 AM (Shift-1)

1. Article 300 allows legal suits against State Governments.
2. The term 'Government of India' is a legal entity under Article 300.

Which of the above is/are correct?

- a) Only 1 b) Only 2 c) Both 1 and 2 d) Neither 1 nor 2

Q6. Consider the following statements:

14 Sep 2025 09:00 SSC CGL- 14 Sep 2025 09:00 AM (Shift-1) 0 AM

1. Criminal law is exclusively under the Union List
2. Agriculture is a State subject
3. Trade and commerce within a State falls under the State List.

Which of the above is/are correct?

- a) Only 1 b) Only 2 c) Both 2 and 3 d) Neither 1 nor 2

7th Schedule & Legislative Lists:

- The 7th Schedule of the Constitution distributes legislative powers into three lists: Union List, State List, and Concurrent List.
- Union List:** Originally had 97 subjects, now it has 100. These are subjects of national importance where only the Centre can make laws.

Note on Citizenship: Single citizenship is a unitary feature borrowed from the UK; states do not have their own citizenship.

- State List:** Originally had 66 subjects, now it has 61. These subjects lack uniform national applicability, so states manage them independently.

Exception for Delhi: Delhi is a special Union Territory (designated National Capital Territory via the 69th Amendment, adding Articles 239AA and 239AB). In Delhi, Land, Police, and Public Order are controlled by the Union Government, not the local government.

- Concurrent List:** Originally had 47 subjects, now it has 52. Both the Union and States can make laws on these subjects. The concept of the Concurrent List (along with Joint Sitting and Trade & Commerce) was borrowed from the Australian Constitution.

- 42nd Constitutional Amendment (1976):** This amendment transferred 5 subjects from the State List to the Concurrent List. These five are:

- Education
- Weights and Measures
- Administration of Justice
- Protection of Wild Animals and Birds (Wildlife)
- Forests

CENTRAL GOVERNMENT

UNION LIST (ONLY CENTRE)

- DEFENCE
- ARMED FORCES
- FOREIGN AFFAIRS
- TREATIES
- BANKING
- CURRENCY & RBI
- RAILWAYS & AIRWAYS
- ATOMIC ENERGY
- CITIZENSHIP
- POSTS & TELEGRAPHS
- INTERSTATE TRADE & COMMERCE

STATE GOVERNMENT

STATE LIST (ONLY STATE)

- POLICE
- PUBLIC ORDER
- AGRICULTURE
- IRRIGATION
- PUBLIC HEALTH & HOSPITALS
- LAND
- LAND REVENUE
- LOCAL GOVERNMENT
- TRADE & COMMERCE WITHIN STATE
- MARKETS & FAIRS

BOTH GOVERNMENTS

CONCURRENT LIST (BOTH)

- CRIMINAL LAW & PROCEDURE
- MARRIAGE & DIVORCE
- EDUCATION
- FORESTS & ENVIRONMENT
- TRADE UNIONS
- ELECTRICITY
- ECONOMIC & SOCIAL PLANNING

Q7. Consider the following statements:

SSC CGL- 14 Sep 2025 09:00 AM (Shift-1)

1. Article 310 is derived from British constitutional practice.
2. It grants absolute power to remove civil servants without inquiry.
3. Article 311 limits the scope of Article 310.

Which of the above is/are correct?

- a) 1 and 2 Only b) 1 and 3 Only c) 2 and 3 Only d) 1, 2 and 3 all are correct

Part XIV: Services Under the Union and States:

- Part 14 of the Constitution is divided into two chapters:
 - Chapter 1 deals with Services (Articles 308 to 314), and
 - Chapter 2 deals with Public Service Commissions (Articles 315 to 323).
- Article 310 (Doctrine of Pleasure): This is derived from a British constitutional concept. It states that civil servants, defense personnel, and All India Service members hold office "during the pleasure" of the President (for the Union) or the Governor (for the State).
 - Not Absolute: The power granted under Article 310 is not absolute.

Part XIV-A: Tribunals (Added by 42nd Amendment, 1976):

- Article 323A: Deals with Administrative Tribunals (e.g., CAT - Central Administrative Tribunal, established in 1985). These can only be set up by Parliament.
- Article 323B: Deals with Tribunals for other purposes, which can be set up by either Parliament or State Legislatures.
- L. Chandra Kumar Case (1997): The Supreme Court ruled that the orders passed by these tribunals are not final and can be challenged in the High Courts.

Public Service Commissions:

- UPSC Members: The maximum retirement age is 65 years, or a term of 6 years.
- State PSC Members: The maximum retirement age is 62 years, or a term of 6 years.
- Half of the members of these commissions must have held a government office for at least 10 years.

Q8. Who has the authority to appoint a Sessions Judge of one sessions division as an Additional Sessions Judge of another division?

Delhi Police 2025

- a) District Magistrate
b) Supreme Court
c) High Court
d) State Government

First Judges Case (also known as the S.P. Gupta Case):

- It was established that the President appoints the judges of both the Supreme Court and High Courts.

- The question arose: While appointing, the President consults the Chief Justice of India (CJI), but is the CJI's advice binding?
 - The Supreme Court ruled that the CJI's advice is not binding on the President.

Second Judges Case:

- The Supreme Court reversed its earlier stance. It declared that the advice given by the CJI is indeed binding on the President.
- However, it was clarified that this cannot be the CJI's individual opinion alone. The CJI must consult with 2 other senior-most judges before giving advice to the President.
- This case officially gave birth to the "Collegium System".

Third Judges Case:

- The Collegium is a group of judges that recommends names to the President for judicial appointments, and this recommendation is binding.
- The Supreme Court expanded the collegium in this case: The CJI must now consult with 4 senior-most judges (instead of 2) before making a binding recommendation to the President.

The 99th Constitutional Amendment Act (2014) & NJAC:

- In 2014, the government passed the 99th Amendment to completely end and replace the Collegium system.
- They created a new body called the National Judicial Appointments Commission (NJAC) to handle the appointment of judges.

Fourth Judges Case:

- The Supreme Court reacted strongly to the government's interference in judicial appointments.
- The Court declared the 99th Constitutional Amendment and the NJAC as unconstitutional.
- As a result, the NJAC was scrapped, and the Collegium system was fully restored.

Q9. Under the Bharatiya Nagarik Suraksha (Second) Sanhita, 2023, a sessions court must frame charges within how many days from the first hearing on such charges?

Delhi Police 2025

- a) 30 days b) 90 days **c) 60 days** d) 45 days

BNSS and Legal Timelines:

- The Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, replaced the old Criminal Procedure Code (CrPC).
- According to Section 25(1)(b) of the BNSS, a sessions court is mandated to frame charges within 60 days from the date of the first hearing on those charges.

Q10. Read the following statements regarding K. Sanjay Murthy's recent appointment as Comptroller and Auditor General (CAG) of India: SSC CGL- 13 Sep 2025 12:30 PM (Shift-2)

1. He took office as the CAG in November 2024 after the term of Girish Chandra Murmu.
2. The CAG is a constitutional office, which is appointed by the President under Article 148 of the Indian Constitution.
3. The CAG's term is only five years and cannot be repeated.

Which of the above is/are correct?

- a) 1 and 2 only b) 1 and 3 only c) 2 and 3 only d) 1, 2 and 3 all are correct

Comptroller and Auditor General (CAG) of India:

- The CAG is referred to as the "Guide and Philosopher of the Public Account Committee" and the "Guardian of the Public Purse" (which oversees the Consolidated Fund of India).
- It is a single-membered body. The first CAG of India was V. Narahari Rao.

Constitutional Provisions for CAG (Articles 148 - 151):

- **Article 148:** Deals with the appointment, oath, and independence of the CAG. The CAG is appointed directly by the President of India.
- **Article 149:** Outlines the duties and powers of the CAG.
- **Article 150:** Relates to the form in which the accounts of the Union and the States should be maintained.
- **Article 151:** Deals with the submission of audit reports. The CAG does not submit reports directly to Parliament. Union reports are submitted to the President, and State reports are submitted to the respective Governors.

Tenure, Resignation, and Removal of CAG:

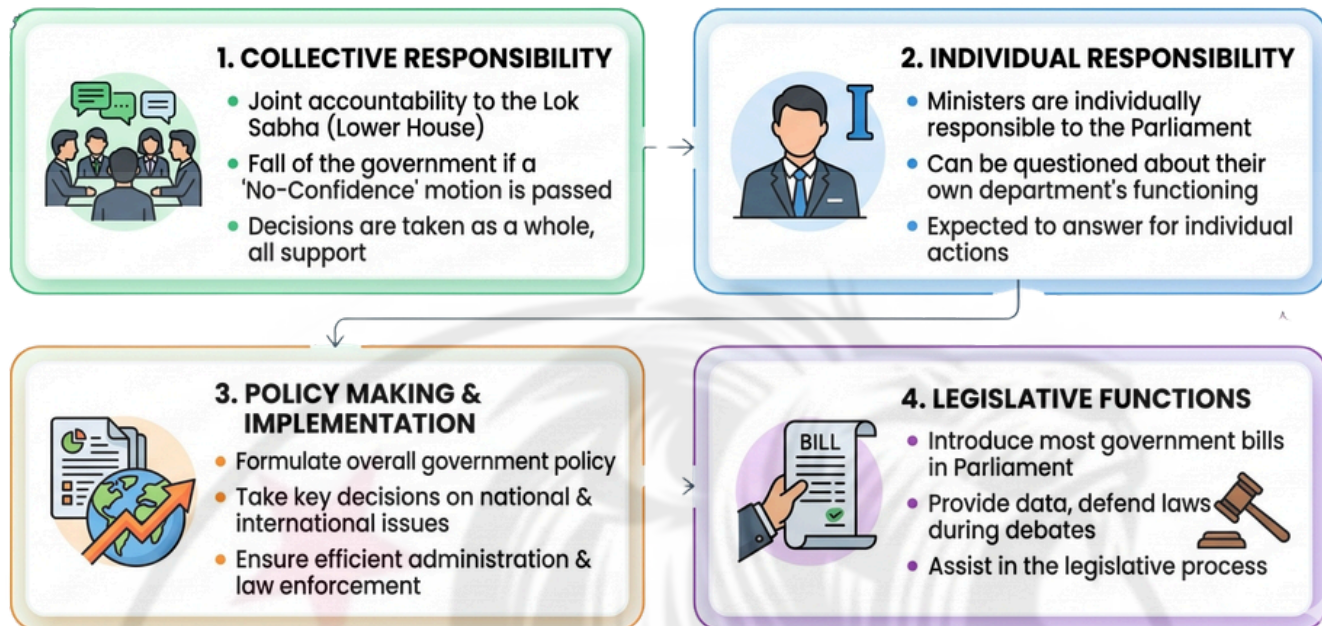
- **Tenure:** The term is 6 years or until the age of 65 years, whichever is earlier.
- **Reappointment:** After retiring, the CAG is not eligible for further office under the Government of India or any State Government.
- **Resignation:** The CAG can resign at any time by addressing a resignation letter to the President.
- **Removal Process:** The CAG can only be removed in the same manner and on the same grounds as a judge of the Supreme Court (which is for "proved misbehavior" or "incapacity").
 - **Removal Procedure Details:** This requires a special majority in Parliament. A removal resolution must be signed by 100 members if initiated in the Lok Sabha, or 50 members if in the Rajya Sabha. If the presiding officer accepts it, a 3-judge inquiry committee is formed. If the committee finds them guilty, the resolution must be passed by a special majority in both houses.

Q11. Which of the following statements regarding the constitutional responsibility of the Council of Ministers (CoM) is/are correct? SSC CGL- 15 Sep 2025 04:00 PM (Shift-3)

1. The Union Council of Ministers is collectively accountable to the Lok Sabha.
2. In states with bicameral legislatures, the State CoM is collectively responsible to the Legislative Council.

- a) Only 1 b) Only 2 c) Both 1 and 2 d) Neither 1 nor 2

Responsibilities of Council of Ministers



Responsibilities of the Council of Ministers (Article 75 & 164):

- Article 75 (Union Level):** Deals with the Union Council of Ministers.
 - Clause 1:** The President appoints the Prime Minister, and other ministers are appointed by the President on the advice of the PM.
 - Clause 2:** (Individual Responsibility): Ministers are individually responsible and hold office during the "pleasure of the President".
 - Clause 3:** (Collective Responsibility): The Union Council of Ministers is collectively responsible to the lower house, which is the Lok Sabha, not the Rajya Sabha. If a 'No-Confidence' motion is passed here, the government falls.
 - Clause 4:** Deals with oaths.
 - Clause 5:** A minister can hold office without being a member of either house for a maximum of 6 months. Within 6 months, they must secure membership.
 - Clause 6:** Ministers' salaries are decided by the Parliament.
- Article 164 (State Level):** Deals with the State Council of Ministers. The clauses mirror Article 75 with minor exceptions.
 - Individual Responsibility:** Ministers hold office during the pleasure of the Governor.
 - Collective Responsibility:** The State Council of Ministers is collectively responsible only to the lower house, the Legislative Assembly (Vidhan Sabha), not the Legislative Council (Vidhan Parishad).

Q12. Choose the statement which is wrong about the Governor.

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- Governor can reserve a Bill for President even if it is not a money bill.
- Governor acts as an agent of Centre in certain functions.
- Governor can reserve a Bill against advice of Council of Ministers.
- Governor can promulgate ordinances when State Legislature is in session.

Ordinance Making Power (Article 213 vs. Article 123):

- The President issues ordinances under Article 123, while the Governor issues them under Article 213.
- The ordinance-making power is not a parallel power of legislation.
- An ordinance cannot be promulgated when the legislature (both houses) is in session. However, an ordinance CAN be issued if even one house is not in session. This is because a bill requires both houses to be active and in session to pass as an act.

Governor's Power to Reserve Bills (Article 200):

- Under Article 200, the Governor can reserve a state bill for the President's consideration.
- This can be an ordinary bill. (Note: Constitutional Amendment Bills cannot be introduced in state legislatures; they can only be introduced in Parliament) .
- **Constitutional Discretion:** The Governor can reserve a bill against the advice of the State Council of Ministers.

Q13. How are Money Bills handled in both Houses of Parliament and State Legislatures with bicameralism under the Constitution? SSC CGL- 14 Sep 2025 09:00 AM (Shift-1)

- a) Rajya Sabha must approve Money Bills within 14 days.
- b) In States, the Legislative Council can amend a Money Bill within 14 days
- c) Both Rajya Sabha and Legislative Councils have equal powers on Money Bills
- d) Rajya Sabha and Legislative Councils can only make recommendations within 14 days.

Bicameralism in States:

- Not all states have a Legislative Council (Upper House). Currently, only 6 states have a bicameral legislature.
- **Trick to remember (KABUTM):**
 - Karnataka, Andhra Pradesh, Bihar, Uttar Pradesh, Telangana, and Maharashtra.

Legislative Council (Creation & Composition):

- **Creation/Abolition (Article 169):** Handled by Parliament using a simple majority.
- **Composition (Article 171):**
- The maximum strength cannot exceed 1/3rd of the State's Legislative Assembly, and the minimum is 40.
 - 1/3rd elected by MLAs (Legislative Assembly).
 - 1/3rd elected by Local Bodies.
 - 1/12th elected by Graduates (of at least 3 years).
 - 1/12th elected by Teachers (secondary level or above).
 - 1/6th nominated by the Governor from the fields of Literature, Science, Art, Social Service, and Cooperative Movement (Note: The President's nominations to Rajya Sabha do not include Cooperative Movement).

Q14. Which of the following is not covered under Article 25 of the constitution?

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- a) Freedom of Conscience
- b) Right to propagate religion
- c) Right to profess and practice religion
- d) Right to religious conversion

Right to Religious Freedom (Articles 25 - 28):

- The Indian Constitution currently guarantees six Fundamental Rights to its citizens. One of these is the Right to Religious Freedom, which is covered from Article 25 to Article 28.
- **Positive Secularism:** India follows a model of "Positive Secularism" rather than negative secularism. This means the State is not strictly separated from religion; instead, there is State involvement to support and treat all religions equally.
- **Article 25 (Freedom of Conscience, Profession, Practice, and Propagation):** Guarantees every person the freedom to practice and spread their religion.
- **Article 26 (Freedom to Manage Religious Affairs):** Gives religious denominations or sections the right to establish/maintain institutions for religious/charitable purposes, manage their own affairs, and own/administer property.
- **Article 27 (Freedom from Taxation for Religion):** Prohibits the state from compelling any person to pay taxes for the promotion or maintenance of any particular religion or denomination.
- **Article 28 (Freedom as to Attendance at Religious Instruction):** Prohibits religious instruction in educational institutions wholly maintained by state funds and regulates it in institutions aided by the state.

Q15. Which of the following witness types is formally recognized in the BSA, 2023?

SSC CGL- 20 Sep 2025 12:30 PM (Shift-2)

- a) Political representatives
- b) Mythological witnesses
- c) Character witnesses only
- d) Expert witnesses such as forensic analysts

Q16. Under which Article can the Union legislate on a State subject for implementing international treaties and agreements, ensuring India fulfills its international obligations?

Delhi Police 2025

- a) Article 250
- b) Article 253
- c) Article 252
- d) Article 258

Doctrine of Repugnancy (Article 254):

- **Article 254:** If both the Parliament and a State Legislature make a law on the same subject within the Concurrent List, and there is a conflict between the two, the law made by the Parliament will prevail (Doctrine of Repugnancy).
- **Exception:** The State law can only prevail if it was reserved for the President's consideration and received their explicit assent.

Article	Provision / Title	Key Points
Article 250	Power of Parliament to legislate on State List during Emergency	Parliament can make laws on State List subjects when National Emergency (Art. 352) is in force; law valid during emergency + 6 months after it ends
Article 252	Power of Parliament to legislate for two or more States by consent	If 2 or more States pass resolution, Parliament can legislate for them; other States can adopt later; only Parliament can amend/repeal such law
Article 253	Legislation for international agreements	Parliament can make laws on any subject (even State List) to implement international treaties/agreements
Article 258	Power of Union to confer powers on States	President can entrust Union functions to State Government with consent; helps in administrative convenience

Q17. Under which Article of the Indian Constitution is Hindi in Devanagari script declared as the official language of the Union?

SSC CGL- 15 Sep 2025 09:00 AM (Shift-1)

- a) Article 348 **b) Article 343** c) Article 344 d) Article 351

Official Languages (Part XVII):

- The Official Languages of India are mentioned in Part 17 of the Constitution, which is divided into 4 chapters containing Articles 343 to 351.
 - Chapter 1: Language of the Union (Articles 343 – 344)
 - Chapter 2: Regional Languages (Articles 345 – 347)
 - Chapter 3: Language of Courts (Articles 348 – 349)
 - Chapter 4: Special Directives (Articles 350 – 351)

Article	Subject	Key Provision
Article 343	Official Language of Union	Declares Hindi in Devanagari script as official language; English to continue for official purposes
Article 344	Commission & Committee on Official Language	Provides for Official Language Commission and Parliamentary Committee
Article 348	Language of Courts	Proceedings in Supreme Court & High Courts in English
Article 351	Development of Hindi Language	Directive to promote and develop Hindi as a national language

- Article 350:** States that any person can submit a grievance (petition) in any language used in the Union or the State.
- Article 346:** Deals with the language of communication between different States, or between the Union and a State.

Q18. Which of the following most accurately describes the legal character of the right to property under Article 300A of the Indian Constitution?

SSC CGL- 12 Sep 2025 09:00 AM (Shift-1)

- a) It is a fundamental right that guarantees compensation for all property acquisitions.
- b) It allows the State to deprive a person of property by any law, even without due process
- c) It is a constitutional legal right that permits deprivation only by authority of law
- d) It permits citizens to claim property protection under Article 32 before the Supreme Court

Right to Property (Article 300A):

- Originally, the Right to Property was a Fundamental Right covered under Article 31 and Article 19(1)(f).
- The 44th Constitutional Amendment Act (1978) removed it from the list of Fundamental Rights.
- It was moved to Part XII (12) of the Constitution under Article 300A.
- It is now solely a constitutional/legal right, meaning no person shall be deprived of their property except by the authority of law.

Q19. Which Article defines State and Union Territories for the purposes of the Constitution?

SSC CGL- 22 Sep 2025 04:00 PM (Shift-3)

- a) Article 1 b) Article 239 c) Article 3 d) Article 240

- **Article 1:** States that "India, that is Bharat, shall be a Union of States." It defines the territory of India, which includes States, UTs, and any territory acquired in the future.

Ambedkar's Clarification: India's federation is not the result of an agreement between states. Therefore, states do not have the right to secede. India is described as an "indestructible union of destructible states" (unlike the USA, which is an indestructible union of indestructible states).

- **Article 2:** Deals with the admission or establishment of new states (bringing foreign territory into the Indian Union).
- **Article 3:** Deals with internal changes to existing states. Parliament can form new states, alter areas, change boundaries, or change names of existing states (e.g., creating Chhattisgarh from MP, Uttarakhand from UP, and Jharkhand from Bihar in the year 2000). This is done via a simple majority.
- **Article 4:** Declares that laws made under Articles 2 and 3 are not considered Constitutional Amendments under Article 368 because they only require a simple majority.

Union Territories (Part VIII):

- Part 8 of the Constitution deals with Union Territories (Articles 239 to 242).
 - **Article 239:** Provides for the administration of UTs by the President (usually through an appointed Administrator or Lieutenant Governor).
 - **Article 239A:** This article allows and empowers the Parliament to create a legislature for a Union Territory.

- **Article 239AA:** Specifically deals with the creation of the National Capital Territory (NCT) of Delhi, added by the 69th Amendment.
- **Article 240:** Empowers the President to make regulations for the peace, progress, and good government of certain UTs.
- **Article 241:** Allows Parliament to establish High Courts for UTs.
- **Article 242:** This article was repealed by the 7th Amendment.

Q20. What does the term "Zero FIR" imply under the new law?

SSC CGL- 24 Sep 2025 04:00 PM (Shift-3)

- a) FIR can be filed at any police station, regardless of jurisdiction.
- b) FIR can be withdrawn at zero cost.
- c) FIR can be digitally deleted if not verified.
- d) FIR can be filed without police verification

- **ZERO FIR:** Zero FIR means that one can file an FIR in any police station, that is, irrespective of the place of incident or jurisdiction. The same can later be transferred to the police station having jurisdiction for the investigation to begin.

Q21. The 91st Amendment Act, 2003 of the Indian Constitution is related with which of the following?

SSC CHSL

- a) Limiting the size of the Council of Ministers
- b) No enhancement of seats of Lok sabha and vidhan sabha til 2026
- c) Bifurcation of the National commission of SC and ST
- d) Fixed the strength of the Goa Legislative Assembly at a minimum of 30 members

MAJOR PROVISIONS OF THE 91ST CONSTITUTIONAL AMENDMENT ACT, 2003

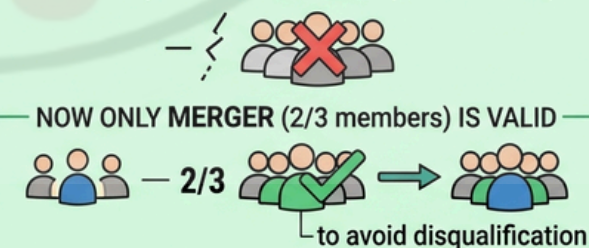
1. LIMIT ON COUNCIL OF MINISTERS

Total number of ministers (including PM/CM)



2. STRENGTHENING ANTI-DEFECTION LAW

deleted provision of "SPLIT" (1/3 members)



3. DISQUALIFICATION PROVISION



A
A disqualified member cannot be APPOINTED AS MINISTER



B
Cannot hold any REMUNERATIVE POLITICAL POST

- **Bifurcation of SC/ST Commissions (89th Amendment):** The National Commission for SCs and STs was split into two separate bodies by the 89th Amendment.
 - **Article 338:** National Commission for Scheduled Castes (SC).
 - **Article 338A:** National Commission for Scheduled Tribes (ST).
 - **Article 338B:** The National Commission for Backward Classes was granted constitutional status under Article 338B by the 102nd Amendment.

Q22. Which of the following statements regarding the distribution of legislative powers between the Union and State legislatures is correct?

SSC CGL- 14 Sep 2025 12:30 PM (Shift-2)

- a) The State legislature can legislate on matters enumerated in the Union List.
- b) The Union legislature can legislate on matters in the Concurrent List only with State approval.
- c) **The Union Government can issue directions to the States under Article 256.**
- d) The Union and States have equal powers on matters in the Union List.

Q23. Under which Article can the President promulgate Ordinances when Parliament is not in session, and how long do these last?

SSC CGL- 25 Sep 2025 12:30 PM (Shift-2)

- a) **Article 123; until Parliament reconvenes or 6 weeks thereafter**
- b) Article 213; until next session of state legislature
- c) Article 356; during emergency
- d) Article 352; during national emergency

Ordinance Making Power (Articles 123 & 213):

- **Who issues them:** The President promulgates ordinances under Article 123, while the Governor does so under Article 213.

Landmark Supreme Court Cases on Ordinances:

- **R.C. Cooper Case (1970):** The Supreme Court ruled that the President's power to promulgate ordinances is subject to "Judicial Review."
- **D.C. Wadhwa Case (1987):** This case dealt with the practice in Bihar where the Governor was constantly re-promulgating ordinances without ever presenting them to the state legislature. The Supreme Court declared this practice of continuous re-promulgation as a "fraud on the Constitution."

Q24. Consider the following statements about the Rajya Sabha and choose the correct option:

1. Rajya Sabha is a continuing house of the Parliament, immune to dissolution under any circumstance.
2. Rajya Sabha members serve staggered six-year terms, with one-third retiring every two years.

SSC CGL- 15 Sep 2025 04:00 PM (Shift-3)

- a) Only 1
- b) Only 2
- c) **Both 1 and 2**
- d) Neither 1 nor 2

Constitution of Parliament (Article 79):

- According to Article 79, the Parliament of India consists of three components: the Lok Sabha, the Rajya Sabha, and the President. The President is an integral part because no bill can become an act without their assent.
- The first sittings of both houses took place on May 13, 1952.
- **Lok Sabha (Article 81)**
 - **Names:** Also known as the House of the People, the Lower House, and the First Chamber.
 - **Composition:** The maximum strength is 550 members (530 from States and 20 from UTs). There are no nominated members anymore.
 - **Election Method:** Members are directly elected by the public using the "First Past the Post" system.
- **Rajya Sabha (Article 80)**
 - **Names:** Also known as the Council of States, the Upper House, and the House of Elders.
 - **Nature of the House:** It is a permanent, continuing chamber and is immune to dissolution.
 - **Composition:** The maximum strength is 250 members. Out of this, 238 are elected representatives from States and UTs (currently only Delhi and Puducherry have representation among UTs), and 12 are nominated by the President from the fields of Literature, Science, Art, and Social Service.
 - **Election Method:** Members are elected via Proportional Representation by means of a Single Transferable Vote.
 - **Term of Members:** While the House itself has no term (as it is permanent), its members serve a staggered 6-year term, with 1/3rd of the members retiring every 2 years.

Q25. Which of the following is true regarding the Anglo-Indian representation in State Assemblies?

SSC CGL- 12 Sep 2025 04:00 PM (Shift-3)

- a) The Governor still nominates one Anglo-Indian member to the Assembly.
- b) The provision was abolished by the 42nd Constitutional Amendment.
- c) The provision was abolished by the 104th Constitutional Amendment.
- d) Anglo-Indian members are elected through proportional representation

Anglo-Indian Representation & 104th Amendment:

- **Historical Provision:** Previously, under Article 331, the President could nominate 2 members of the Anglo-Indian community to the Lok Sabha. Under Article 333, the Governor could nominate 1 Anglo-Indian member to the State Legislative Assembly if the community was under-represented.
- **Abolition:** The 104th Constitutional Amendment Act completely abolished these provisions, ending the nomination of Anglo-Indians to both Parliament and State Assemblies.

Reservation for SCs and STs (Articles 330 & 332):

- Article 330 deals with the reservation of seats for Scheduled Castes (SCs) and Scheduled Tribes (STs) in the Lok Sabha.

- Article 332 deals with the reservation of seats for SCs and STs in the State Legislative Assemblies.
- While the 104th Amendment abolished the Anglo-Indian nominations, it actively extended the reservation of seats for SCs and STs in both the Lok Sabha and State Assemblies for another 10 years.

Q26. Through which Constitutional Amendment was Article 21A introduced, mandating free and compulsory education as a Fundamental Right for children between 6 and 14 years of age?

SSC CGL- 15 Sep 2025 04:00 PM (Shift-3)

- a) 42nd Amendment Act
- b) 86th Amendment Act**
- c) 93rd Amendment Act
- d) 44th Amendment Act

Amendment Act	Year	Key Provisions	Articles Affected
42nd Constitutional Amendment Act	1976	Known as "Mini Constitution"; added Fundamental Duties, changed Preamble (Socialist, Secular), strengthened Centre	Many Articles (incl. 368, 51A added)
93rd Constitutional Amendment Act	2005	Enabled reservation in private educational institutions (except minority institutions)	Added Article 15(5)
86th Constitutional Amendment Act	2002	Made Right to Education a Fundamental Right (6-14 years)	Added Article 21A, modified 45 & 51A
44th Constitutional Amendment Act	1978	Removed Right to Property as Fundamental Right; restored democratic features after Emergency	Added Article 300A, amended 352

Q27. Even after a Bill is passed by the State Legislature, the Governor may forward it to the _____ for consideration.

SSC CGL- 22 Sep 2025 04:00 PM (Shift-3)

- a) Chief Minister
- b) Speaker
- c) President**
- d) Prime Minister

Q28 Who is known as the Father of the Indian Constitution?

SSC CGL- 20 Sep 2025

- a) J.L Nehru
- b) Sardar Patel
- c) BR Ambedkar**
- d) Rajendra Prasad

Dr. B.R. Ambedkar and the Drafting Committee:

- Dr. B.R. Ambedkar is known as the Father of the Indian Constitution and the "Modern Manu".
- He was the Chairperson of the Drafting Committee, which was the most important committee of the Constituent Assembly.
- Drafting Committee Details: It was set up on August 29, 1947, and it sat for 141 days. It had a total of 7 members:
 1. Dr. B.R. Ambedkar (Chairman)
 2. K.M. Munshi
 3. Syed Mohammad Saadulla
 4. Alladi Krishnaswamy Iyer
 5. N. Gopalaswami Ayyangar
 6. N. Madhava Rao (He replaced B.L. Mitter due to ill health)
 7. T.T. Krishnamachari (He replaced D.P. Khaitan after his death)
- **Chief Draftsman:** The Chief Draftsman of the Constitution was S.N. Mukherjee
- Dr. Ambedkar founded the Bahishkrit Hitakarini Sabha in 1924. He also famously called Article 32 the "Heart and Soul of the Indian Constitution".
- **Jawaharlal Nehru:** Introduced the "Objective Resolution" in the Constituent Assembly on December 13, 1946, which was later adopted on January 22, 1947.
- **Sardar Vallabhbhai Patel:** Known as the "Iron Man of India" and the "Bismarck of India" for integrating the princely states. In the Constituent Assembly, he headed the Provincial Constitution Committee and the Advisory Committee on Fundamental Rights, Minorities and Tribals.
- **Dr. Rajendra Prasad:** The first President of India (elected on January 24, 1950). He was the Permanent President of the Constituent Assembly. He headed the Rules of Procedure Committee, the Steering Committee, and the Ad-hoc Committee on the National Flag.
- **Dr. Sachchidananda Sinha:** The Temporary President of the Constituent Assembly, chosen following the French practice of electing the oldest member.
- **H.C. Mukherjee & V.T. Krishnamachari:** Both served as the Vice Presidents of the Constituent Assembly.
- **Sir B.N. Rau:** Served as the Constitutional or Legal Advisor to the Constituent Assembly.
- **G.V. Mavalankar:** Whenever the Constituent Assembly met as a legislative body to make ordinary laws (instead of drafting the constitution), it was presided over by G.V. Mavalankar, who later became the first Speaker of the Lok Sabha.

Q29. Consider the following statements:

SSC CGL- 19 Sep 2025 12:30 PM (Shift-2)

1. Both President and Governor can grant pardons under Article 72.
2. The Governor cannot pardon in cases of death sentence.

Which of the above statements is/are correct?

- a) Only 1 b) Only 2 c) Both 1 and 2 d) Neither 1 nor 2

- The pardoning powers of the President and the Governor are largely the same, except in two specific areas where the Governor has no power:
 1. The Governor cannot pardon a death sentence (though they can suspend, remit, or commute it). Only the President can grant a full pardon for a death sentence.
 2. The Governor has no pardoning power regarding sentences given by a Court Martial (military court).

Types of Pardoning Powers:

- **Pardon:** Completely absolves the offender from all sentences, punishments, and disqualifications.
- **Commute:** Changing the form or character of the punishment to a lighter one (e.g., converting a death sentence into life imprisonment).
- **Remission:** Reducing the total amount/period of the sentence without changing its fundamental character.
- **Respite:** Awarding a lesser sentence in place of the original one due to some special facts or grounds (e.g., physical disability or health grounds).
- **Reprieve:** Placing a temporary hold or stay on the execution of a sentence (especially a death sentence) to allow the convict time to seek a pardon or commutation.

Q30. Consider the following statements:

SSC CGL- 14 Sep 2025 12:30 PM (Shift-2)

1. Every Money Bill is a Financial Bill
2. Every Financial Bill is a Money Bill.

Which of the above statements is/are correct?

- a) Only 1 b) Only 2 c) Both 1 and 2 d) Neither 1 nor 2

Money Bills (Article 110) vs. Financial Bills (Article 117):

- Money Bills are defined under Article 110. Financial Bills are defined under Article 117 (specifically Financial Bill I under 117(1) and Financial Bill II under 117(3)).
- Exclusions from Money Bills: Bills that only deal with the imposition of fines, penalties, fees for licenses, or local taxes imposed by local bodies (e.g., municipalities for road sweeping) are not considered Money Bills.

Procedure for Passing a Money Bill (Article 109):

- **Introduction:** A Money Bill can only be introduced in the Lok Sabha.
- **President's Recommendation:** It absolutely requires the prior recommendation of the President before it can be introduced.
- **Speaker's Certification:** The Speaker of the Lok Sabha certifies whether a bill is a Money Bill. While this decision is generally final, the Supreme Court has stated that the Speaker's decision is subject to Judicial Review.

- **Rajya Sabha's Limited Role:** Once passed by the Lok Sabha, it goes to the Rajya Sabha. The Rajya Sabha has only 14 days to take action. It cannot reject or amend the bill; it can only give recommendations. If it fails to return the bill within 14 days, the bill is deemed to have been passed by both houses. The Lok Sabha is not bound to accept any of the Rajya Sabha's recommendations.
- **No Suspensive Veto & No Joint Sitting:** The President cannot use a Suspensive Veto (cannot return a Money Bill for reconsideration). Furthermore, the provision for a Joint Sitting (Article 108) does not apply to Money Bills or Constitutional Amendment Bills.

Financial Bill:

- A Financial Bill I contains any or all of the provisions of a Money Bill plus some other matters of general legislation.
- It is similar to a Money Bill in only two specific ways:
 1. It can only be introduced in the Lok Sabha.
 2. It requires the prior recommendation of the President.

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